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Date
30 November 2023
Our reference
z2023-02815
Your letter dated
25 May 2023

Contact person

Your reference
3593586-1048015-PZO

Subject
Advice on the draft amendment to the Implementation Regulation Wkkgz regarding quality registrations

Dear Mr. Kuipers,

In your letter dated 25 May 2023, the Authority for Personal Data Protection (AP) was consulted pursuant to Article 36, fourth paragraph, of the General Data Protection Regulation (GDPR) regarding the draft proposal to amend the Implementation Regulation Wkkgz in relation to the management of quality registrations in healthcare (hereinafter: the draft).

The AP assesses whether the draft concerning the processing of personal data complies with the Charter of Fundamental Rights of the European Union (EU), the general legal principles of the EU, the GDPR, and other relevant law, whereby it must be sufficiently demonstrated that the principle of proportionality is met, by:

- the draft being suitable for achieving the pursued objective of general interest or the protection of the rights and freedoms of others (1. suitability);
- the objective not being reasonably achievable in another way that less infringes on the fundamental rights of the data subjects (2. subsidiarity);
- the interference not being disproportionate to that objective, which particularly implies a weighing of the importance of the objective and the severity of the interference (3. proportionality);
- the draft being sufficiently clear and precise regarding the scope and being predictable in its application (4. legal certainty);
- the draft sufficiently indicating under which circumstances and conditions personal data may be processed, thereby ensuring that the interference is limited to what is strictly necessary (5. substantive and procedural safeguards); and
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the draft being binding under national law (6. bindingness under national law).

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The AP notes that the elaboration of the statutory assessment framework as a procedural safeguard for the protection of personal data is inadequate (point 5). The AP objects on this point and advises against continuing the procedure unless this is rectified.

Scope of the draft

The draft establishes further rules for the implementation of the amendment to the Act on Quality, Complaints, and Disputes in Healthcare in relation to the management of quality registrations in healthcare and the grounds for processing special personal data for the purposes of those quality registrations (hereinafter: the Act). A quality registration aims to collect, store, and further process data about a well-defined client population to measure and improve the quality of care for that client population. The quality registrations thus serve the general interest of ensuring and improving the quality of care. Healthcare providers must provide pseudonymized patient data under the Act once a specific quality registration has been included in a register maintained by the Healthcare Institute of the Netherlands. The draft contains the further specified conditions referred to in Article 11o, first paragraph, of the Act, based on which the Healthcare Institute decides on inclusion in that register. These criteria concern a further specification of the requirements of necessity (subsidiarity and proportionality). Additionally, the draft includes an annex with the quality registrations that do not fully comply with Article 11o of the Act and are therefore conditionally included.

Advice

Assessment of the principle of proportionality separate from the assessment of the statutory framework

In the advice on the overarching legislative proposal, the AP explained that the acceptability of the obligation of a specific quality registration entirely depends on the assessment of an application for registration by the Healthcare Institute and the standards and procedures applied therein. The standards applied by the Healthcare Institute are therefore of essential importance; indeed, only if the Healthcare Institute rightly determines that necessity in the context of the general interest is established (through the application of adequate standards and procedures) is there an exception to the principle prohibition on the processing of special personal data, only then is it acceptable that the confidentiality obligation of the healthcare provider is breached, and only then is a legal basis a good foundation for the processing.¹ In a context where private parties such as health insurers also play an important role, this becomes even more significant.

The intended new Article 7ab in the Act contains an elaboration of the statutory requirements of 'necessity, proportionality, and subsidiarity'.² This statutory assessment framework is further elaborated in the draft. This framework partly corresponds to the aforementioned framework for assessment.

¹ Advice from the AP dated 20 January 2021 regarding the draft for a legislative proposal on Quality Registrations in Healthcare (reference: 2021-11045)

² These requirements are included in Article 11o, first paragraph, part b, of the Act.

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the principle of proportionality,³ but also contains other elements. The explanation states that the

framework is broader than the GDPR and that within it, aspects can be weighed against each other. Thus, it follows from the explanation that the administrative burdens for care providers and the use of public resources are also taken into account within the legal framework in the context of 'necessity, proportionality, and subsidiarity'.⁴

The AP notes that thus a correct standard is not applied. To make a quality registration mandatory, it must first be objectively established, based on the principle of proportionality, that the infringement of the fundamental right is necessary and proportional when viewed from the (public interest-based) objective of the quality registration. In this assessment, other interests, such as the administrative burdens of care providers, do not play a role. In a balancing of interests where multiple interests would weigh in, it could be conceivable that a processing operation is permitted that constitutes a significant infringement on the right to data protection but has low administrative burdens. If these interests are weighed simultaneously and equally against each other, this weighing does not guarantee that the processing is necessary in light of the GDPR and the protection of fundamental rights.

The assessment against the principle of proportionality 'as such' must therefore take place first. Only when the necessity has been objectively established in that light is there room for other considerations, such as the administrative burdens of care providers.

The AP advises that Article 7ab, paragraph 1, of the draft be amended so that the permissibility of the infringement of the fundamental right is first assessed, and only then is it considered whether the intended quality registration meets the other aspects of the legal assessment framework, such as administrative burdens and the expenditure of public resources.

Minimum standard of appropriate technical and organizational measures

Paragraph 2 (incorrectly referred to as paragraph 3) of the new Article 7ab of the draft describes how a quality registration fulfills the requirement of appropriate technical and organizational measures. For this, a NEN standard and an ISO standard are taken as a starting point. The wording of paragraph 2 states that the requirement of appropriate technical and organizational measures is met if there is "in any case" certification for the NEN or ISO standards.⁵

The AP emphasizes that if the quality registration does not at least meet the standards, the application should be rejected (see point 5 of the assessment framework for the principle of proportionality). This manner of phrasing also overlooks that security requirements must always be state of the art.⁶ It is therefore not correct that the draft assumes that "in any case" the stated requirement of appropriate technical and organizational measures is met if, at the time of application, the requirement is satisfied.

3 As derived from Article 8, in conjunction with Article 52, paragraph 1, of the EU Charter of Fundamental Rights, or from Articles 5 and 6 of the GDPR.

4 Paragraph 2.3.2. of the explanation.

5 Paragraph 2 of Article 7ab of the draft.

6 See also Article 32, paragraph 1, of the GDPR: "taking into account the state of the art."

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NEN or ISO standard. Under the GDPR, the registration holder is required to assess during the duration of a quality registration whether the technical and organizational measures taken are adequate in light of the risks. The draft should not create any confusion regarding this.

The Dutch Data Protection Authority (AP) advises to rephrase Article 7ab, second paragraph, of the draft as a minimum standard, so that an application that does not meet the NEN or ISO standard is rejected in any case. Furthermore, the AP advises to indicate in the explanation that the requirements of Article 32 of the GDPR may go further and require continuous attention from the registration holder.

Framework for Conditional Quality Registrations

Pursuant to Article 11t of the Act, quality registrations can be conditionally included in the register of quality registrations. This concerns quality registrations that do not yet comply with the provisions set out in or pursuant to Article 11o of the Act. Under Article 11t, fifth paragraph, of the Act, certain quality registrations are conditionally designated in Article 7ae in the annex. The draft does not contain information about the specific quality registrations that are conditionally included. Additionally, the draft in its current form does not provide insight into which aspects these quality registrations do not meet the requirements of Article 11o.

Article 11o of the Act also contains further elaboration of conditions arising from the protection of personal data. A temporarily or conditionally designated quality registration must also comply with these. For this reason, it is necessary to clarify which conditions of Article 11o, first paragraph, of the Act a conditionally designated quality registration does not meet.

The AP advises to include in the explanation which conditions of Article 11o, first paragraph, of the Act a quality registration conditionally designated in the annex does not meet.

Workload of the AP

It is likely that the draft will require the AP to make additional efforts. This effort has not yet been accounted for in the funding of the AP. This must be addressed in consultation with the Minister for Legal Protection—who is responsible for the budget from which the AP is funded—prior to the entry into force. For this reason, a copy of this advice is sent to the Minister for Legal Protection.

Disclosure

This advice will be published on the AP's website within two weeks.

7 Article 32 GDPR.

8 Article 11t, second paragraph of the Act.

9 See also the first point of this advice.

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Yours sincerely,

Dutch Data Protection Authority,

Aleid Wolfsen

Chairman